

26STCV16288 26STCV16288

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV16288 Hearing Date: September 16, 2026 Dept: 511

Tentative Ruling

Judge Upinder S.

Kalra, Department 511

HEARING DATE: September

16, 2026

CASE NAME: Kendra

Lerner v. Alfred H. Pickens

CASE NO.: 26STCV16288

MOTION

FOR STAY PENDING APPEAL

MOVING PARTY: Defendant

Alfred H. Pickens

RESPONDING PARTY(S): Plaintiff Kendra Lerner, as

Successor Trustee of the Eleanor L. Smith 2020 Revocable Living Trust, dated

June 10, 2020

REQUESTED RELIEF:

1. An

order issuing of stay of proceedings pending final resolution of the appeal in

Court of Appeal Case No. B353568.

TENTATIVE RULING:

1. Motion

for stay pending appeal is GRANTED.

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

On May 20, 2026, Plaintiff Kendra Lerner, as Successor Trustee of the Eleanor L. Smith 2020 Revocable Living Trust, dated June 10, 2020 (Plaintiff) filed a verified complaint against Defendant Alfred H. Pickens (Defendant) with causes of action for: (1) partition of real property by sale; and (2) accounting between cotenants.

According to the complaint, this case involves real property located at 6249 S. Cimarron St., Los Angeles, California 90047 (the Property). Plaintiff alleges that title in the Property was vested in Eleanor L. Smith and Defendants as joint tenants, that Ms. Smith transferred her interest into the Trust, and that Ms. Smith died on May 24, 2023. Plaintiff alleges that the Probate Court has already decreed Ms. Smith's interest in the Property as a Trust asset and that Plaintiff holds a 1/2 interest in the Property as a result. Plaintiff seeks a sale of the Property due to Defendant's refusal to do a voluntary partition or buyout of Plaintiff's interest.

On June 18, 2026, Plaintiff filed a notice of pendency of action.

On June 30, 2026, Defendant filed an answer.

On June 30, 2026, Defendant filed the instant motion for stay of proceedings pending appeal.

On August 17, 2026, Plaintiff filed a notice of related case with: (1) Case No. 23STCV25940 Pickens v. Smith, et al. pending in Los Angeles County Superior Court Dept. 36 filed October 23, 2023; and (2) Case No. 25STPB07082 In re: the Eleanor L. Smith 2020 Revocable Living Trust, dated June 10, 2020 disposed of by judgment filed June 20, 2025.

On September 2, 2026, Plaintiff filed an opposition to the motion to stay pending appeal. On September 9, 2026, Defendant filed a reply.

LEGAL STANDARD:

Code of Civil Procedure § 916(a) places a stay on certain proceedings in a trial court while an appeal is perfected. The code stays proceedings “upon the judgment or order appealed from or upon the matters embraced therein or affected thereby, including enforcement of the judgment or order, but the trial court may proceed upon any other matter embraced in the action and not affected by the judgment or order.” (CCP § 916(a).) In other words, for a matter to be stayed, it must be embraced by the order appealed from. “The purpose of the automatic stay provision of section 916, subdivision (a) ‘is to protect the appellate court’s jurisdiction by preserving the status quo until the appeal is decided.’” (Varian Medical Systems, Inc. v. Delfino, (2005) 35 Cal.4th 180, 189.) A proceeding “affects the effectiveness of an appeal if the possible outcomes on appeal and the actual or possible results of the proceeding are irreconcilable.” (Varian Medical Systems, Inc., supra, 35 Cal.4th at 190.)

A court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice. (OTO, L.L.C. v. Kho, (2019) 8 Cal.5th 111, 141.) The power to stay proceedings is incidental to the power inherent in every court to control the disposition of the cause on its docket with the economy of time and effort for itself, for counsel, and for litigants. (Id.) Trial courts generally have inherent power to stay proceedings in the interest of justice and to promote judicial efficiency. (Freiberg v. City of Mission Viejo, (1995) 33 Cal.App.4th 1484, 1489.)

ANALYSIS:

Request for
Judicial Notice

The court DENIES Plaintiff’s request for judicial notice as immaterial to this ruling.

Stay

Defendant contends a stay is appropriate because the pending appeal concerns (and depends on) the very Probate Order on which Plaintiff relies to establish her cotenancy rights. He

adds that allowing this action to proceed risks inconsistent factual and legal determinations on the same issue already decided by two different courts. Finally, Defendant contends he is not required to post an undertaking since the underlying ruling does not concern a money judgment or sale of real property – only a determination that a real property interest is a confirmed asset of a trust.[1]

Plaintiff argues there is no automatic stay, a discretionary stay is not warranted, and if the court is inclined to grant a stay it should be limited to enforcement of any interlocutory judgment of partition.

Defendant replies that a stay is appropriate because Plaintiff is seeking to enforce the appealed order, a stay will avoid inconsistent judicial determinations, preserving the status quo is not prejudicial, and a limited stay would not prevent inconsistent rulings.

Here, a stay is appropriate.

First, this case directly seeks to enforce the appealed order.[2]

(Varian, supra, 35 Cal.4th at p.

189.) Plaintiff specifically alleges her cotenancy based on Ms. Smith's transfer of the interest into the Trust and the December 30, 2025 Probate Order confirming such. (Compl. ¶¶ 13-16.) The parties do not dispute that this is the order subject to appeal. (See Declaration of Mark L. Armstrong ¶¶ 3, 4, 6.) Second, the "proceeding itself is inherently inconsistent with the possible outcome on appeal." (Varian, supra, 35 Cal.4th at p. 190.) In fact, if the Court of Appeal reverses the Probate Order, then Plaintiff no longer has standing to bring this partition claim since she would not be a cotenant. Therefore, a stay is appropriate.[3]

Accordingly, the court GRANTS Defendant's motion for a stay of proceedings.

CONCLUSION:

For

the foregoing reasons, the Court decides the pending motion as follows:

1. Motion

for stay pending appeal is GRANTED.

Moving party is to give notice.

IT IS SO ORDERED.

Dated: September 16, 2026 _____ Upinder
S. Kalra

Judge
of the Superior Court

[1]

Plaintiff does not contest the undertaking requirement. The court therefore declines to develop it.

[2]

Plaintiff relies on Varian to the extent that it states the proceeding must interfere with the appellate court's ability to conduct the appeal. (Varian, supra, 35 Cal.4th at p. 190.) This is one of the options presented. Defendant advanced the other situation.

[3]

Even if there was no automatic stay, this analysis supports the court's exercising a discretionary stay.